

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026

Offering polluters free help to follow the rules doesn't make them more likely to follow them. Researchers studied hundreds of Ohio facilities offered free compliance workshops and found no drop in violations. The program looked like a success at first glance — but that improvement was a trend already underway, not an effect of the workshops.

BACKGROUND

Environmental enforcement has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach. Rather than punishing facilities that break the rules, regulators help them follow the rules in the first place, through free workshops, guidance, and technical support. The premise is that many violations, especially at smaller operations, stem from confusion or limited expertise rather than deliberate corner-cutting. Regulators have never settled on a single approach: over the decades, U.S. environmental policy has swung back and forth between the two, depending on the administration. Yet whether the help actually changes behavior had rarely been tested. New research puts it to the test, studying an Ohio program that offered free assistance to hundreds of small water-treatment facilities with a recent history of violations.

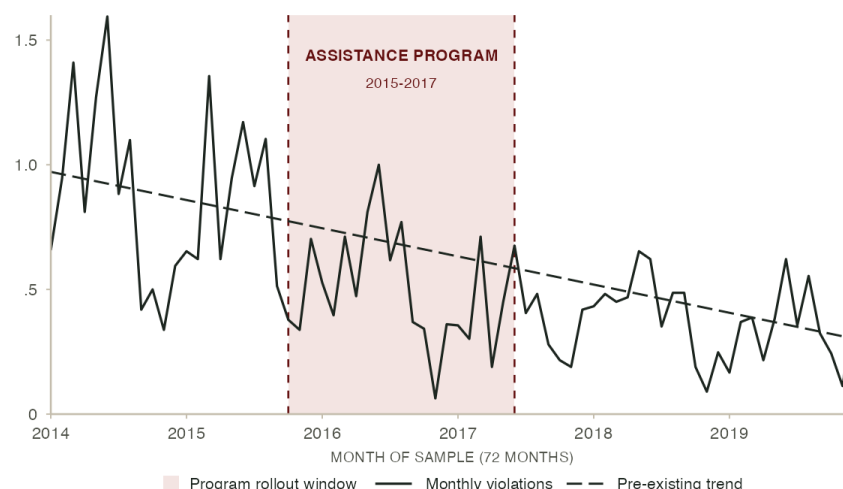
WHAT THE STUDY FOUND

To measure the program's effect, the researchers compared facilities that had received the workshops with otherwise similar facilities that hadn't yet been reached, using the program's gradual roll-out across the state. They tracked both regulatory violations and the actual pollution facilities discharged.

Looking only at violations before and after the program rolled out, it looks like a clear success: violations fell by about half. But that drop had begun *before* the workshops started, and it continued at the same pace afterward, among assisted and unassisted facilities alike. That is the misunderstanding the study corrects: by stripping out that underlying trend, it shows the workshops made no real difference to violations or pollution.

VIOLATIONS PER FACILITY, 2014–2019

Source: Ferraro & Shimshack (2026).



TAKEAWAY

Compliance assistance rests on the idea that facilities break the rules because they don't fully understand them. For these wastewater plants, that wasn't the case — extra training and guidance changed little, a sign that their violations had other roots. A program that solves a problem facilities don't actually have was never likely to work.

The stakes are practical, not academic. Buoyed by the apparent success, the EPA had moved to expand the program to other states, spreading an approach that the evidence here says does not work. Expanding an ineffective program only multiplies its cost: wasted money, pollution that is never curbed, and communities that never see cleaner water. The lesson is not that assistance can never help; this is one program, and small benefits can't be ruled out. The point is that such programs should be rigorously tested before they replace tools already known to work.